

**El Paso County
Delia Briones
County Clerk**

Instrument Number: 00000000021

r.cobos

Recorded On: 3/26/2026 11:28:47 AM

Number of Pages: 1

Examined and Charged as Follows:

Total Recording: 48.00

*****THIS PAGE IS PART OF THE INSTRUMENT*****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information

Document Number 00000000021
Receipt Number 1968434
Recorded Date/Time: 3/26/2026 11:28:47
 AM
Station: CCH01-CCK108



State of Texas
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon,
and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones
County Clerk
El Paso County, TX

NOTICE OF [SUBSTITUTE] TRUSTEE'S SALE

Assert and protect your rights as a member of the armed forces of the United States. If you or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately.

1. Date, Time, and Place of Sale.

DATE: June 2, 2026

TIME: 10:00 AM

PLACE: At the El Paso County Coliseum, 4100 E Paisano Dr, El Paso, TX 79905, or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioners Court

- 2. Terms of Sale.** The sale will be conducted as a public auction to the highest bidder for cash. Pursuant to the deed of trust, the mortgagee has the right to direct the Trustee to sell the property in one or more parcels and/or to sell all or only part of the property. Pursuant to section 50.009 of the Texas Property Code, the property will be sold in AS IS, WHERE IS condition, without any express or implied warranties, except as to the warranties of title, if any, provided for under the deed of trust.
- 3. Instrument to be Foreclosed.** The instrument to be foreclosed is the Deed of Trust or Contract Lien dated March 1, 2022 and recorded as Instrument Number 20220022783, real property records of El Paso County, Texas.
- 4. Obligations Secured.** Deed of Trust or Contract Lien executed by DIANA GUTIERREZ AND MICHAEL PAUL GUTIERREZ, securing the payment of the indebtedness in the original principal amount of \$257,254.00, and obligations therein described including by not limited to the promissory note; and all modifications renewals and extensions of the promissory note. Village Capital & Investment LLC is the current mortgagee of the note and deed of trust or contract lien.
- 5. Default.** A default has occurred in the payment of indebtedness, and the same is now wholly due, and the owner and holder has requested to sell said property to satisfy said indebtedness.
- 6. Property to be Sold.** The property to be sold is described as follows:
Lot 34, Block 6, PASEOS DEL SOL UNIT TWO "AMENDING SUBDIVISION", an Addition to the City of El Paso, El Paso County, Texas, according to the Plat thereof recorded in Volume 80, Page 6, Plat Records of El Paso County, Texas.
- 7. Mortgage Servicer Information.** The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property Code § 51.0025, the Mortgage Services is authorized to collect the debt and to administer any resulting foreclosure of the lien securing the property referenced above. Village Capital & Investment LLC as Mortgage Servicer, is representing the current mortgagee, whose address is:

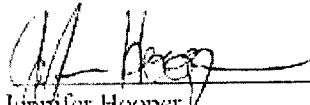


2460 Paseo Verde Parkway
Suite 110
Henderson, Nevada 89074

8. **Appointment of Substitute Trustee.** In accordance with Texas Property Code Sec. 51.0076, the undersigned authorized agent for the mortgage servicer has named and appointed, and by these presents does name and appoint Jennifer Hooper, Agency Sales and Posting, LLC, whose address is c/o Brock & Scott, 4225 Wingren Drive, Suite 105, Irving, TX 75602, Substitute Trustee to act under and by virtue of said Deed of Trust.
9. **Limitation of Damages.** If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee, or the Mortgagee's attorney.

THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.

Date: 3/24/2026


Jennifer Hooper


Beverly Mitnis

Certificate of Posting

I am _____ whose address is _____. I declare under penalty of perjury that on _____ I filed this Notice of [Substitute] Trustees Sale at the office of the El Paso County Clerk and caused it to be posted at the location directed by the El Paso County Commissioners Court.

Declarant's Name: _____

Date: _____